SUPREME COURT OF INDIA

APPELLATE JURISDICTION · THREE-JUDGE BENCH

Review Petition (Crl.) No. 228 of 2018

CNR: SCIN010002282018

Date: 01 October, 2019

Citation: (2020) 4 SCC 761

CORAM: Hon'ble Arun Mishra, M.R. Shah, B.R. Gavai, JJ.

Petitioner: Union of India

- VERSUS -

Respondent: State of Maharashtra & Others

DOMAIN: CRIMINAL LAW & CASTE EQUALITY

STATUS: Good Law (Binding 3-Judge Precedent)

JUDICIAL RATIO DECIDENDI & OPERATIVE HOLDING:

The directions issued in Subhash Mahajan ordering preliminary inquiry and prior permission before arrest placed an unreasonable burden on underprivileged victims. Section 18 bar is constitutional.

STATUTES APPLIED: Section 18, Section 18A, Article 15, Article 21

DISPOSITION: SUBHASH MAHAJAN DIRECTIONS RECALLED AND OVERRULED

EXECUTIVE RATIO SUMMARY:

Three-judge bench recalled and overruled Subhash Mahajan (2018), confirming that Section 18 of the SC/ST Act bars anticipatory bail and that adding judicial filters like preliminary inquiry weakens protective legislation.

LEXGUARD CRYPTOGRAPHIC VERIFICATION SEAL · SECTION 65B ADMISSIBLE

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